

Discover Bank v. Ron Beck

19CF12822

**MOTION TO ENTER JUDGMENT PURSUANT TO CODE OF
CIVIL PROCEDURE SECTION 664.6**

Plaintiff Discover Bank moves, pursuant to Code of Civil Procedure section 664.6, for an order entering judgment pursuant to a stipulated settlement agreement on the grounds that Defendant Ron C. Beck has defaulted on the agreement.

“If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6 (a).)

The parties on 11/4/19 filed a Stipulation for Entry of Judgment Pending Performance which settled all matters raised in the Complaint. Based on the evidence presented, the Court finds defendant is in default under the terms of the Settlement Agreement. (See Declaration of Jessica Garcia at ¶ 7.) Additionally, plaintiff has satisfied all of its obligation under the Settlement Agreement. (See *id.* at ¶ 8.)

Defendant failed to file any opposition to the motion.

Based on the foregoing, Plaintiff’s motion is GRANTED.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to prepare a formal Judgment pursuant to Rule of Court 3.1312 in conformity with this ruling.

Christopher Maag v. Daniel R. Laughlin, et al.

20CV44843 DEMURRER

Defendant Laughlin Trust demurs, pursuant to Code of Civil Procedure section 430.10, to the first, second, and third causes of action of Plaintiff's Complaint on the grounds that, as a trust, it cannot be sued. (See Notice of Motion at 1:27-2:8.) Defendants Laughlin Trust, Daniel R. Laughlin, Claire S. Laughlin, and Gregory Patterson demur, pursuant to Code of Civil Procedure section 430.10, to the third cause of action of Plaintiff's Complaint on the ground that it fails to state facts sufficient to constitute a cause of action against any of them for Fraudulent Conveyance. (See *id.* at 2:6-7.)

Defendants first argue that all three causes of action fail as to Defendant Laughlin Trust because a trust cannot be sued. This is true for "an express trust [that is] merely a relationship by which one person or entity holds property for the benefit of some other person or entity." (*Presta v. Tepper* (2009) 179 Cal.App.4th 909, 913. This type of 'trust', "can neither sue nor be sued in its own name. Instead, the real party in interest in litigation involving a trust is always the trustee." (*Id.* at 914.)

The Complaint names "Laughlin Trust" as a defendant. (See Complaint at ¶¶ 1, 5, subd. (a).) Plaintiff argues that the person sued under the name Laughlin Trust "may be a legal entity or an unincorporated association" and is therefore subject to being sued. (See Opposition at 4:14-15.) The Court understands Plaintiff to infer, from this argument, that the Complaint does not contain allegations from which it can be concluded that the party sued as "Laughlin Trust" is the type of express trust that cannot be sued under the holding in *Presta v. Tepper, supra*, 179 Cal.App.4th 909. The Court disagrees

A demurrer is treated as "admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Paragraph 5 of the Complaint states that "Each defendant named above is a natural person except defendant Laughlin Trust" which is then explicitly identified as "a trust." (Complaint at ¶ 5.) Plaintiff does not identify the Laughlin Trust in the Complaint as a Real Estate Investment Trust or a "commercial trust" or any other form of "legal entity" discussed in Plaintiff's Opposition. (See Opposition at 4:14-25.)

To the extent that Plaintiff wishes to allege that the Laughlin Trust is such a legal entity, the Court grants leave to amend the Complaint to so allege. To the extent that Plaintiff remains "unsure of the exact nature of the Laughlin Trust, and unaware of the identity of the trustee" the present ruling is made without prejudice to Plaintiff's right, upon learning the nature of the former and/or the identity of the latter, to subsequently substitute the Laughlin Trust and/or its